

HOUSE No. 2485

The Commonwealth of Massachusetts

PRESENTED BY:

Jay D. Livingstone

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act concerning the cardiac health of children and student athletes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>1/15/2025</i>

HOUSE No. 2485

By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 2485) of Jay D. Livingstone relative to the cardiac health of children and student athletes. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act concerning the cardiac health of children and student athletes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after section 244, the following section:-

3 Section 245. Children’s cardiac safety

4 (a) “health care professional” means a physician, advanced practice nurse, or physician
5 assistant.

6 (b) A registered, licensed, and certified health care professional who performs an annual
7 physical examination of a child 19 years of age or younger shall include as part of that
8 examination questions that evaluate a child’s family history related to cardiac conditions
9 contained in the “Preparticipation Physical Evaluation” form developed jointly by the American
10 Academy of Family Physicians, American Academy of Pediatrics, American College of Sports
11 Medicine, American Medical Society for Sports Medicine, American Orthopaedic Society for

Sports Medicine, American Osteopathic Academy of Sports Medicine and the American Heart Association's 14 point screening for heart disease in youth.

The evaluation shall include, but not be limited to: (1) A question regarding the biologic heart health history of the child, including any history of sperm or egg donors and biological parents; (2) Four specific questions regarding biologic heart health history during cardiac screening in well-child visits and in preparticipation physical examinations, including: (a) Have you ever fainted, passed out, or had an unexplained seizure suddenly and without warning, especially during exercise or in response to sudden loud noises, such as doorbells, alarm clocks, and ringing telephones; (b) Have you ever had exercise related chest pain or shortness of breath; (c) Has anyone in your immediate family (parents, grandparents, siblings) or other, more distant relatives (aunts, uncles, cousins) died of heart problems or had an unexpected sudden death before age 50; (d) Are you related to anyone with hypertrophic cardiomyopathy or hypertrophic obstructive cardiomyopathy, Marfan syndrome, arrhythmogenic cardiomyopathy, long QT syndrome, short QT syndrome, Brugada syndrome, catecholaminergic polymorphic ventricular tachycardia, Wolff-Parkinson-White syndrome or anyone younger than 50 years with a pacemaker or implantable defibrillator?

(c) The department of elementary and secondary education and the department of public health shall set forth guidance to both public and private schools and require that prior to the participation of any student enrolled in grades kindergarten to 12 on a school or community organization sponsored interscholastic or intramural athletic team or squad, the student shall have a physical examination using the "Preparticipation Physical Evaluation" form developed jointly by the American Academy of Family Physicians, American Academy of Pediatrics, American College of Sports Medicine, American Medical Society for Sports Medicine,

American Orthopaedic Society for Sports Medicine, and American Osteopathic Academy of Sports Medicine and the American Heart Association's 14 point screening for heart disease in the young. The Preparticipation Physical Evaluation form shall include the History and Physical Examination components, and the additional questions required pursuant to Section 3 of this act. The Preparticipation Physical Evaluation form shall also include a certification statement, to be signed by the registered, licensed, and certified health care professional who performed the physical examination, attesting to the completion of the current professional development module established pursuant to this Act.

(d) This physical examination shall be conducted within 6 weeks to the first day of official practice in an athletic season and shall be conducted by a registered, licensed, and certified health care professional. All preparticipation physical evaluations must be updated in accordance with the PPE Monograph developed jointly by the American Academy of Family Physicians, American Academy of Pediatrics, American College of Sports Medicine, American Medical Society for Sports Medicine, American Orthopaedic Society for Sports Medicine, and American Osteopathic Academy of Sports Medicine and the American Heart Association's 14 point screening for heart disease in the young and ask if the student has: (1) been advised by a registered, licensed, and certified health care professional defined as physician, advanced practice nurse, or physician assistant (MD, DO, PA, or APN/NP) not to participate in a sport; (2) sustained a concussion, been unconscious or lost memory from a blow to the head; (3) broken a bone or sprained, strained, or dislocated any muscles or joints; (4) fainted or blacked out; (5) experienced chest pains, shortness of breath, or heart racing; (6) had a recent history of fatigue and unusual tiredness; (7) been hospitalized, visited an emergency room, or had a significant medical illness; (8) started or stopped taking any over the counter or prescribed medications; or

(9) had a sudden death in the family, or whether any member of the student's family under the age of 50 has had a heart attack or heart trouble, and (10) asked specifically the new 4 questions listed in subsection (b) regarding the heart health history during cardiac screening in well-child visit and/or PPE.

The board of education of a public school district and the governing board or chief school administrator of a nonpublic school shall not permit a student enrolled in grades kindergarten to 12 to participate on a school or community based organization sponsored interscholastic or intramural athletic team or squad unless the student has a completed a Preparticipation Physical Evaluation form and, if applicable, a completed health history update questionnaire as required under this Act.

(e) The department of health shall create a single form, including the contents in subsection (c), to be utilized in all Preparticipation Physical Evaluations statewide.

(f) The department of elementary and secondary education and the department of public health shall establish a Childhood Cardiac Screening professional development module to increase the assessment skills of those health care practitioners who perform well-child physical examinations and screenings. The departments shall either develop a module adhering to requirements in this Act, or adopt the module created by the New Jersey Commissioners of Education and Health in consultation with the New Jersey Chapter of the American Academy of Pediatrics, the New Jersey Academy of Family Physicians, the American Heart Association, and the New Jersey Chapter of the American College of Cardiology.

If the Commissioners of department of elementary and secondary education and the department of public health choose to develop a new module they shall, in consultation with the

state chapter of the American Academy of Pediatrics, the state chapter of the Academy of Family Physicians, the American Heart Association, and the state chapter of the American College of Cardiology, develop, by the 2026-2027 school year, a Childhood Cardiac Screening professional development module to increase the assessment skills of those health care practitioners who perform well child physical examinations and screenings. The module shall include, but need not be limited to, the following: (1) how to complete and review a detailed medical history with an emphasis on cardiovascular family history and personal reports of symptoms; (2) identifying symptoms of sudden cardiac arrest that may require follow up with a cardiologist; (3) recognizing normal structural changes of the athletic heart; (4) recognizing prodromal symptoms that precede sudden cardiac arrest; (5) performing the cardiovascular physical examination; (6) reviewing the major etiologies of sudden unexplained cardiac death with an emphasis on structural abnormalities and acquired conditions; and (7) when to refer a student to a cardiologist for further assessment.

The module shall be posted on the websites of the department of elementary and secondary education and the department of public health and links shall be made available to the American Academy of Pediatrics, the Academy of Family Physicians, the American Heart Association, the American College of Cardiology, the Athletic Trainers' Society, the State Board of Medical Examiners, Board of Nursing, and the Society of Physician Assistants.

Providers completing the Childhood Cardiac Screening will be registered in a database to ensure all providers have successfully completed the required modules. This data shall be held for 10 years.

101 The department of public health shall compile and publish on its website an annual report
102 containing the total number of exams that were completed and the number of referrals that were
103 made to cardiology . The report shall also analyze the outcomes of this legislation.

104 (g) The commissioner of elementary and secondary education, in consultation with the
105 commissioner of public, the American Heart Association, and the American Academy of
106 Pediatrics, shall develop a pamphlet that provides information about the disease that can cause
107 sudden cardiac arrest to children and their parents. The pamphlet shall include an explanation of
108 sudden cardiac arrest, its incidence, a description of early warning signs, and an overview of the
109 options that are privately available to screen for cardiac conditions that may lead to sudden
110 cardiac arrest, including a statement about the limitations of these options.

111 The commissioner shall distribute the pamphlet, at no charge, to all school districts in the
112 Commonwealth. The commissioner shall update the pamphlet as necessary, and shall make
113 additional copies available to nonpublic schools upon request.

114 Beginning in the 2026-2027 school year, each school district shall annually distribute this
115 pamphlet to the parents or guardians of students participating in school sports as part of the
116 student's preparticipation physical examination and completion of athletic permission forms. A
117 student and their parent or guardian shall certify in writing that they received and reviewed the
118 pamphlet.

119 (h) A registered, licensed, and certified health care professional who performs annual
120 physical examinations of children 19 years of age or younger, including examinations prior to
121 the student's participation in a school or community based organization sponsored interscholastic
122 or intramural athletic team or squad as required under this Act, shall complete the Childhood

Cardiac Screening professional development module established by the department of public health under this Act and read the associated pamphlet every four years.

A contract between a school district and a school physician shall include a statement of assurance that the school physician has completed the Childhood Cardiac Screening professional development module and associated pamphlet under this Act within the past four years.

A registered, licensed, and certified health care professional who completes the Childhood Cardiac Screening professional development module as required pursuant to this Act shall retain on file at that person's professional office a hard copy of the certificate of completion of the module. The hard copy of the certificate of completion of the module shall be made available upon request.

Upon every renewal of a certification, biennial registration, or renewal of a license by a health care professional who performs annual physical examinations of children 19 years of age or younger, the health care professional shall attest to the completion of the module within the past four years to the Board of Medical Examiners or the Board of Nursing, as appropriate. An application for renewal of a certification, biennial registration, or renewal of a license shall include a check box for attestation regarding the health care professional's compliance with this Act

Upon performing a pre-participation physical examination required under this Act, the physician, advanced practice nurse, or physician assistant shall sign the certification statement on the Preparticipation Physical Evaluation form required pursuant to this Act attesting to the completion of the module. The board of education of a public school district and the governing board or chief school administrator of a nonpublic school shall retain the original signed

145 statement to attest to the qualification of the health care practitioner to perform the physical
146 examination required under this Act.

147 (i) The office of consumer affairs and business regulation, the office of public safety and
148 inspections, and the department of elementary and secondary education, pursuant to the
149 “Administrative Procedure Act” and in consultation with the department of public health, shall
150 adopt rules and regulations to effectuate the purposes of this act.